

1/14

File No.: EXP202406402

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 14/03/2024, a document was submitted to this Agency by A.A.A. (hereinafter, the claimant), through which a complaint is filed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for a possible breach of personal data protection regulations.

The reasons for the complaint are as follows:

The respondent disseminated on its (...) of (**CANAL.1), (B.B.B.) a publication that includes images (...) (...) of the claimant and (...) (...) (C.C.C.), as well as (...) and (...).

The documents are included in a publication dated ***FECHA.1 referring to (...). At the end (...) it is indicated (...).

Along with the complaint, the following documentation is provided:

- Screenshots of the message published on (...) ***CANAL.1 (...) (B.B.B.) with (...). The publication includes the following documents:

- (...), issued for A.A.A. and C.C.C. and which contains personal data (...).
- (...), entered into between A.A.A. and C.C.C. in which, among others, their personal identification data, date of birth, address, and ID number are included, as well as (...) (...), including their ID numbers.
- (...), issued by the (...).
- (...).

SECOND: On (**FECHA.2), this Agency accessed (...) (**CANAL.1) (...) (B.B.B.) and verified that the publication subject to the complaint remained accessible.

Along with the publication, there are (...) images that capture the documents listed above (...).

THIRD: Various press information collected by this Agency on ***FECHA.2 regarding (...) is recorded in the file.

FOURTH: On 24/04/2024, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGD), the complaint filed by the claimant was admitted for processing.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/14

FIFTH: This Agency accessed (...) (**CANAL.1) (...) (B.B.B.) and verified that (...).

SIXTH: On 30/04/2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), in order to impose a fine of €5,000 for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR.

Furthermore, the aforementioned initiation agreement ordered the respondent to adopt the provisional measure consisting of suspending the processing of personal data subject to the complaint by removing the published content on (...) (**CANAL.1) (...) (B.B.B.). This provisional measure was to be adopted within a maximum period of ten working days from the notification of the initiation agreement of the sanctioning procedure.

The initiation agreement, in accordance with the rules established in the LPACAP, was attempted to be notified by postal mail to the address C/ ***DIRECCIÓN.1, resulting in the first attempt being "Absent" on 23/05/2024 and the second being "Returned to sender due to incorrect address" on

24/05/2024.

Finally, and in accordance with the provisions of Article 44 of the LPACAP, it was notified by announcement published in the BOE on 30/05/2024.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

EIGHTH: After the period for adopting the agreed provisional measure had also elapsed, on 14/06/2024, this Agency accessed (...) (...) (...) (B.B.B.) and verified that the publication subject to the complaint remained accessible.

Furthermore, (...) (**CANAL.1) (B.B.B.) had increased to XXX.XXX.

NINTH: On 21/06/2024, the instructor of the procedure issued a resolution proposal in which it was proposed to impose a fine of €5,000 on the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

Additionally, in the aforementioned resolution proposal, it was proposed to make definitive the measure consisting of the suspension of the processing of personal data subject to the complaint by removing the published content on (...) (**CANAL.1) (...) (B.B.B.).

This resolution proposal, in accordance with the rules established in the LPACAP, was attempted to be notified by postal mail to the address ***DIRECCIÓN.2 on 18/07/2024, resulting in "Returned to sender due to unknown"; and to the already mentioned address ***DIRECCIÓN.1, resulting in "Returned to sender due to unknown" on 08/08/2024.

Finally, and in accordance with the provisions of Article 44 of the LPACAP, it has been published in the BOE on 23/08/2024.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

TENTH: On 02/07/2024, the Director of the Spanish Agency for Data Protection issued a resolution adopting a provisional measure requiring (...) to immediately withdraw the publication subject to the complaint, due to the non-compliance with the provisional measure imposed on the complained party in the initiation agreement of the present sanctioning procedure.

ELEVENTH: On 23/07/2024, this Agency accessed (...) (**CHANNEL.1) (...) (B.B.B.) and verified that the publication subject to the complaint had been withdrawn. Furthermore, (...) (**CHANNEL.1) had increased to XXX.XXX.

TWELFTH: Once the aforementioned resolution proposal was notified, in accordance with the rules established in the LPACAP and after the deadline granted for the submission of allegations had passed, it was confirmed that no allegations had been received from the complained party (B.B.B.). In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The complained party is the owner of (...) (**CHANNEL.1) (...) (B.B.B.). On ***DATE.1, the complained party published in (...) (**CHANNEL.1) the following message: (...)

Alongside the publication, the following documentation appears:

- (...), issued for A.A.A. and B.B.B. and containing personal data of both, such as the identity of their parents (...) and date of birth and place (...).

- (...). The following personal data are legible:

o (...)

o (...)

o (...)

o (...)

- (...), issued by (...), among (...).
- (...). The following personal data are legible, among others:
 - o Name and surname, date of birth and place: (...).
 - o Data (...).

C/ Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es

4/14

- o Data (...).
- (...). The following personal data are legible, among others:
 - o Name and surname, date of birth and place: (...).
 - o Name and surname, date of birth and place: (...).
 - o Data (...).
 - o Data (...).

SECOND: As of 22/04/2024, the publication subject to the complaint remained accessible (...) (**CHANNEL.1) (...) (B.B.B.).

THIRD: On 29/04/2024, (...) (**CHANNEL.1) (...) (B.B.B.) had XXX.XXX (...).

FOURTH: By means of an initiation agreement of the sanctioning procedure dated 30/04/2024, the complained party was ordered to adopt the provisional measure consisting of the withdrawal of the published content (...) (**CHANNEL.1) subject to the complaint. This provisional measure was to be adopted within a maximum period of ten working days from the notification of the initiation agreement of the sanctioning procedure.

As of 14/06/2024, after the deadline granted for compliance with the indicated provisional measure had passed, the publication subject to the complaint remained accessible (...) (**CHANNEL.1) (...) (B.B.B.).

FIFTH: As of 14/06/2024, (...) (**CHANNEL.1) (...) (B.B.B.) is at XXX.XXX.

SIXTH: By means of a provisional measure adoption agreement dated 02/07/2024, (...) is required to immediately withdraw the publication subject to the complaint, due to the non-compliance with the provisional measure dated 30/04/2024 imposed on the complained party.

SEVENTH: As of 23/07/2024, the publication subject to the complaint had been withdrawn (...) (**CHANNEL.1) (...) (B.B.B.).

EIGHTH: On 23/07/2024, (...) (**CHANNEL.1) (...) (B.B.B.) had XXX.XXX (...).

LEGAL GROUNDS

I

Competence and procedure

C/ Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es

5/14

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be

identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.” In turn, paragraph 2 of the same provision defines data processing as “any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;”

Finally, paragraph 7 defines the data controller as “the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;”

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the respondent has disseminated, among others, the following personal data of natural persons: name and surname, date of birth, ID number, or address.

It should also be noted that the respondent carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, being (...) (**CHANNEL.1) owned by it where the processing of personal data subject to this complaint has occurred.

III

Right to Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/14

This procedure is initiated through the complaint filed by the complainant due to the fact that the respondent published (...) (**CHANNEL.1), (B.B.B.) a message in which it attached (...) documents containing personal data of the complainant, (...) and (...); as indicated in the section of Established Facts (...).

The following personal data are legible in the documentation:

- Name and surname, date and place of birth, ID number, and address (...).
- Name and surname, date and place of birth, ID number, address, and aspects related to the birth of (...).
- Name and surname, date and place of birth, and ID number of (...).
- Name and surname, date and place of birth, ID number, address, and aspects related to the birth of (...).
- Name and surname, date and place of birth, and address of (...).

First of all, it should be noted that individuals have the power of disposition over their personal data and its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection.

Thus, the STC 292/2000, of November 30, states that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on

the one hand, the ability to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.”

In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set out in Article 5 of the GDPR.

The principles relating to processing are, on the one hand, the starting point and the closing clause of the legal framework for data protection, constituting

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/14

true guiding rules of the system with an intense expansive force; on the other hand, due to their high level of concreteness, they are mandatory norms susceptible to being infringed.

More specifically, it is worth highlighting the principle set forth in Article 5.1.c) of the GDPR, which establishes that:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

IV

Balance between the right to the protection of personal data and other fundamental rights and freedoms

However, the fundamental right to the protection of personal data is not absolute, as it may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of expression, being weighed on a case-by-case basis.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

That said, the fundamental right to freedom of information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, Personal and Family Privacy, and the Right to One's Own Image.

Thus, we will cite the STS 50/2017, First Civil Chamber, of January 27, 2017 (appeal 2139/2015), which indicates:

“In this sense, it is reiterated jurisprudence (see among the most recent, and by way of doctrinal synthesis, judgment 605/2015, of November 3) that the abstract prevalence of the freedoms of expression and information ‘can only be reversed in the specific case by considering the relative weight of honor and privacy according to the specific circumstances at hand, provided that the information and opinions disclosed refer to matters of general interest or public relevance (either by the persons or by the subject matter), that the communication does not involve the unnecessary use or employment of unequivocally offensive or degrading expressions, and, in the case of freedom of information, provided that they are truthful, specifying in all cases that in the realm of protection of the right to privacy, the criterion for determining the legitimacy or illegitimacy of intrusions is not that of truthfulness but that of the public relevance of the disclosed fact, that is, that its communication to...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

"public opinion, even if true, is necessary in terms of the public interest of the matter being reported" (the emphasis is ours).

It is not about giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case. Rather, it is about finding a balance between both to achieve the purpose of the first without undermining the second. The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR.

As we have seen earlier, the fundamental right to freedom of expression is not unlimited, as the jurisprudential interpretation when confronting it with other rights and freedoms does not allow for its recognition in all cases and with all breadth, but rather, it can be limited by other fundamental rights that must also be respected. Thus, its limitation is observed when the personal data provided is unnecessary to achieve the purpose pursued with the publication of the information.

At this point, it is pertinent to mention the jurisprudence that analyzes the relationship between freedom of information, on one hand, and the rights of those affected by informative content.

Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, issued in case 1593/2006, states the following:

"Although the press must not overstep certain limits, particularly regarding the reputation and rights of others or the proper administration of justice, its duty is, nevertheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48)

(...), the publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any general interest debate for society, even though the person is known to the public. Under such conditions, freedom of expression requires a stricter interpretation (...). (paragraph 50).

(...) In verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases - the freedom of expression protected by Article 10 and the right to respect for private life enshrined in Article 8 - the Court of Justice must balance the public interest in the publication of information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51)

And it concludes that, since the parties affected by the news are not public figures, the disclosure of their identity cannot be considered essential to understanding the details of the case (paragraph 57). On the other hand, the aforementioned judgment of November 30, 2000, issued by the Constitutional Court in case 292/2000, reasons as follows:

"the fundamental right to data protection extends its guarantee not only to privacy in its dimension constitutionally protected by Article 18.1 of the Spanish Constitution, but also to what this Court has sometimes defined in broader terms as the sphere of...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

the personal goods that belong to the realm of private life, inextricably linked to the respect for personal dignity (STC 170/1987, of October 30, FJ 4), such as the right to honor, expressly cited in art. 18.4 CE, and likewise, in the broadly stated art. 18.4 CE, to the full exercise of personal rights. The fundamental right to data protection extends the constitutional guarantee to those data that are relevant to or have an impact on the exercise of any personal rights, whether or not they are constitutional rights and whether or not they relate to honor, ideology, personal and family privacy, or any other constitutionally protected good.

Thus, the object of protection of the fundamental right to data protection is not limited only to the intimate data of the person but to any type of personal data, whether intimate or not, whose knowledge or use by third parties may affect their rights, whether fundamental or not, because its object is not only individual privacy, which is covered by the protection granted by art. 18.1 CE, but personal data.

Consequently, it also encompasses those public personal data, which by virtue of being so, accessible to anyone's knowledge, do not escape the power of disposition of the affected individual because their right to data protection guarantees it. For this reason, the fact that the data is personal does not mean that only those relating to the private or intimate life of the person are protected, but that the protected data includes all those that identify or allow the identification of the person, which may serve for the creation of their ideological, racial, sexual, economic profile, or of any other nature, or that serve for any other utility that in certain circumstances constitutes a threat to the individual.

It is also worth mentioning the ruling 27/2020, of February 24, issued by the Constitutional Court in its appeal 1379/2017, in which it reasons as follows: "when the right to one's own image collides with other constitutionally protected goods or rights, particularly the freedoms of expression and information (art. 20.1.a and d CE), the different conflicting interests must be weighed, and, taking into account the specific circumstances of each case, decide which interest deserves greater protection" (SSTC 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and privacy but also with the fundamental right to one's own image, for example, in those cases where information disseminates photographs or video clips that can only be understood as mere instruments of satisfying others' curiosity and have been included not with an informative function but with the purpose of quenching the expectation that, in those terms, a certain news may raise" (the emphasis is ours).

Having stated the above, it should be recalled that the information disseminated in the publication subject to the claim, like the image, which is the subject of analysis in much of the jurisprudence in this area, contains personal data and, therefore, all safeguards and guarantees must be applied in such a way as to ensure the fundamental right to the protection of personal data of the affected individuals. In the specific case examined, as we have indicated, the claimed party disseminated through (...) (**CHANNEL.1), (B.B.B.) (...) documents that contain numerous personal data of the claiming party, (...) and (...); (...) (name and surname, ID number, among others).

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/14

Thus, as reflected in the Established Facts of this resolution, the personal data contained in the documents published by the responding party in (...) (**CHANNEL.1) —to which, therefore, more than XXX,XXX (...) had access at the time the publication was removed by (...), (...) who, until then, could access the published content— corresponds to (...).

In addition to the above, it should be noted that the publication includes certain personal data that do not provide added value to the information under which the publication of this data seems to be justified. Specifically, the following:

- Name and surname, date and place of birth, ID number, and address (...).
- Name and surname, date and place of birth, ID number, address, and aspects related to the birth of (...).
- Name and surname, date and place of birth, and ID number of (...).
- Name and surname, date and place of birth, ID number, address, and aspects related to the birth of (...).
- Name and surname, date and place of birth, and address of (...).

In this regard, it should be recalled that Recitals 51 and 75 of the GDPR distinguish a group of personal data that, by their nature, are particularly sensitive due to the significant risk they may pose, in the context of their processing, to fundamental rights and freedoms. The common denominator of all of them is that their processing involves a significant risk to rights and fundamental freedoms as it may lead to physical, material, or immaterial harm. This group or category of particularly sensitive data includes the special categories of data regulated by Article 9 of the GDPR - Recital 51 of the GDPR - and, in addition, many other data not regulated in that provision. Thus, Recital 75 details the personal data whose processing may entail a risk, of varying severity and probability, to the rights and freedoms of individuals as a consequence of the potential for physical, material, or immaterial harm. Among

them, it mentions those whose processing “may lead to issues of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social harm;” Royal Decree 1553/2005, of December 23, which regulates the issuance of the National Identity Document and its electronic signature certificates, establishes in its Article 1: “1. The National Identity Document is a personal and non-transferable document issued by the Ministry of the Interior that enjoys the protection granted by law to public and official documents. Its holder

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
11/14

shall be obligated to the custody and preservation thereof. 2. Said Document has sufficient value, by itself, to certify the identity and personal data of its holder as recorded therein, as well as the Spanish nationality of the same. 3. Each National Identity Document shall be assigned a personal number that will be considered a general personal numerical identifier. (...)”

(Emphasis added by us).

This characteristic of the DNI/NIF number makes it a particularly sensitive data point in that, if the processing of this data is not accompanied by the necessary technical and organizational measures to ensure that the person identifying themselves with it is indeed its holder, a third party may impersonate an individual, with the risks this entails for the privacy, honor, and property of the impersonated individual.

In the present case, we consider that the fact that the unlawful processing of the claimed party's data has involved a particularly sensitive data point, the DNI/NIF of the claiming party, affects the seriousness of the allegedly infringing conduct. This is also true given that data of third parties (...) and belonging to the intimate or private sphere, such as those related to (...).

V

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

In accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the claimed party has processed data that was excessive as it was not necessary for the purpose for which it was processed.

The known facts constitute an infringement, attributable to the claimed party, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Grounds, which implies the commission of the infringement classified in Article 83.5, paragraph a) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

12/14

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following

infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial breach of the articles mentioned therein and, in particular, the following:
a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Sanction for the infringement of Article 5.1.c) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages and losses they have suffered (paragraph a). In the case at hand, the publication of documentation containing various personal data of the claiming party, (...) (...) (**CANAL.1) (...) (B.B.B.) implies the possibility of immediate and widespread dissemination of the content, considering that (...) had at the time of the adoption of the initiation agreement of the present sanctioning procedure (...), which increased to nearly XXX.XXX at the time the content was removed.
- The intentionality or negligence in the infringement. The dissemination of the documents containing the personal data of the claiming party, as well as of (...), was carried out directly by the claimed party, intentionally, as evidenced by the fact that such publication was accompanied by certain evaluative considerations by the claimed party.
- The categories of personal data affected by the infringement (paragraph g). As we have indicated, the published documentation contains data related to (...), of third parties and also the DNIs of various individuals related to the claiming party. Considering the classification of this last data as particularly sensitive, it can be concluded that its publication affects the seriousness of the infringing conduct, and the circumstance of paragraph g) of Article 83.2 of the GDPR should be appreciated as an aggravating factor.

The balance of the circumstances considered, regarding the infringement committed by violating what is established in Article 5.1.c), allows for the imposition of an administrative fine of €5,000 (five thousand euros).

VII

Adoption of measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

The infringement in the matter at hand may result in the imposition on the responsible party of the obligation to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In such a case, this Agency may require the responsible entity to adjust its actions to the personal data protection regulations within the timeframe determined, to the extent expressed in the Legal Grounds of this agreement.

In light of the circumstances analyzed in this resolution of the sanctioning procedure, it is understood that the party being claimed against would be carrying out excessive personal data processing, especially considering the nature of the data being processed. Therefore, it is considered that the continuation of the processing could cause very serious and irreparable harm to the rights of the potential affected parties.

It should be noted that in the agreement to initiate the present sanctioning procedure, it was agreed to impose as a provisional measure the suspension of the processing of personal data subject to the claim through the removal of the published content on (...) (**CANAL.1) (...) (B.B.B.). And, therefore, in order to safeguard and guarantee the rights and freedoms of the claiming party, it is agreed to elevate the provisional measure imposed to definitive status.

The imposition of these measures is compatible with the imposition of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the measures imposed by this agency in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF **NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of 5,000.00 euros (five thousand euros).

SECOND: TO CONFIRM, elevating it to definitive status, the provisional measure imposed on B.B.B., with NIF **NIF.1, whose compliance must be evidenced the day after the notification of this sanctioning procedure resolution:

- The suspension of the processing of personal data subject to the claim through the removal of the published content on (...) (**CANAL.1) (...) (B.B.B.).

THIRD: TO NOTIFY this resolution to B.B.B., with NIF **NIF.1.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es